

# TAB 14



## Board of Education Report

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**File #:** ROC-007-22/23, **Version:** 1

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Report of Correspondence

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES  
Governing Board of the Los Angeles Unified School District

February 7, 2023

REPORT OF CORRESPONDENCE

The following correspondence addressed to the Board of Education is submitted with the recommended Disposition, “Refer to Superintendent for referral to Office of the General Counsel to take all steps necessary to protect the interests of the Board of Education, including assignment to outside counsel; Controller to draw warrants in such amounts as may be necessary for the payment of costs and fees upon invoices as approved by the Office of the General Counsel”:

| FROM                       | LEGAL ACTION                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Bish & Cutting, APC     | Summons and Complaint for Damages: 1) Motor Vehicle; 2) Property Damage; 3) Personal Injury; Case No. 22CHCV01022; Superior Court in the State of California for the County of Los Angeles; Keon Khatibi, Plaintiff, v. Los Angeles Unified School District; Does 1 through 10, Defendants                                                                                                                                                                                      |
| 2. Douglas/Hicks Law       | Summons and Complaint for Damages: 1) Negligence (Gov’t Code Section 815, 820); 2) Negligent Entrustment (Gov’t Code Section 815, 820); 3) Negligent Per Se (Gov’t Code Section 815, 820); Case No. 22STCV38408; Superior Court in the State of California for the County of Los Angeles; Julie Sexton, Plaintiff, v. Los Angeles Unified School District; Does 1 through 10, inclusive, Defendants                                                                             |
| 3. Downtown L.A. Law Group | Summons and Complaint for Damages: 1) Assault; 2) Battery; 3) Intentional Infliction of Emotional Distress; 4) Negligent Hiring, Supervision & Retention of an Unfit Employee; 5) Breach of Mandatory Duty; 6) Negligence; Case No. 22NWCV01156; Superior Court in the State of California for the County of Los Angeles; Jane Doe, a minor, by and through her GAL Melinda Castro, Plaintiff, v. Los Angeles Unified School District; Does 1 through 50, inclusive, Defendants |
| 4. Gilbert & Stern LLP     | Summons and Complaint for Personal Injury, Property Damage, Wrongful Death: 1) Motor Vehicle; 2) Property Damage; 3) Personal Injury; Case No. 22STCV26798; Superior Court in the State of California for the County of Los Angeles; Gregory Berkovich; Bronia Berkovich, Plaintiff, v. Los Angeles Unified School District; Does 1 through 25, inclusive, Defendants                                                                                                           |

5. Greenberg Gross LLP  
Jeff Anderson & Associates  
Summons and First Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision and Retention; 3) Sexual Battery; 4) Sexual Harassment; Case No. 22STCV35391; Superior Court in the State of California for the County of Los Angeles; John Doe 7067, Plaintiff, v. Los Angeles Unified School District; Does 3 through 20, inclusive, Defendants
6. Greenberg Gross LLP  
Jeff Anderson & Associates  
Summons and First Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision and Retention; 3) Sexual Battery; Case No. 22STCV39153; Superior Court in the State of California for the County of Los Angeles; James Eric Bunch, Plaintiff, v. Los Angeles Unified School District; Does 3 through 20, inclusive, Defendants
7. Greenberg Gross LLP  
Jeff Anderson & Associates  
Summons and First Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision/Retention; 3) Sexual Battery; 4) Sexual Harassment; Case No. 22NWCV01077; Superior Court in the State of California for the County of Los Angeles; Jane Doe 7064, an individual; Jane Doe 7035, an individual; and Jane Doe 7063, an individual, Plaintiffs, v. Los Angeles Unified School District; Does 3 through 20, Defendants
8. Herman Law  
Summons and Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV38432; Superior Court in the State of California for the County of Los Angeles; A.B., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
9. Herman Law  
Summons and Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV37727; Superior Court in the State of California for the County of Los Angeles; A.S., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
10. Herman Law  
Summons and Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV26438; Superior Court in the State of California for the County of Los Angeles; Dwanda Stoval., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants

11. Herman Law  
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 3 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 3 through 25); Case No. 22STCV26198; Superior Court in the State of California for the County of Los Angeles; Carol Lanehart-King, Plaintiff, v. Los Angeles Unified School District; Does 3 through 25, inclusive, Defendants
12. Herman Law  
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 2 through 25); Case No. 22STCV31017; Superior Court in the State of California for the County of Los Angeles; D.P., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
13. Herman Law  
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 2 through 25); Case No. 22STCV35801; Superior Court in the State of California for the County of Los Angeles; S.V., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
14. Herman Law  
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 2 through 25); Case No. 22STCV35618; Superior Court in the State of California for the County of Los Angeles; Victor Pena, Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
15. Herman Law  
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV37739; Superior Court in the State of California for the County of Los Angeles; A.M., Plaintiffs, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants

16. HJC Law Group, APC  
Summons and Complaint for Damages: 1) Personal Injury; Case No. 21STCV02350; Superior Court in the State of California for the County of Los Angeles; Gal Chitrit, an Individual, by and through his Conservator, Pua Berman, Plaintiffs, v. Los Angeles Unified School District; Does 1 through 20, inclusive, Defendants
17. Jason Paul Halpern, A Professional Corporation  
Summons and Complaint for Damages: 1) Negligence; 2) Negligent Hiring, Training and Supervision; 3) Negligent Infliction of Emotional Distress (Bystander); Case No. 22STCV25187; Superior Court in the State of California for the County of Los Angeles; Nalah Mena, A Minor, by and through her GAL, Vanessa Samuels, Plaintiff, v. Los Angeles Unified School District; Does 1 through 100, inclusive, Defendants
18. Law Office of James D. Lipschultz  
Summons and Complaint on Public Works Payment Bonds and on Stop Payment Notices; Case No. 22STCV36820; Superior Court in the State of California for the County of Los Angeles; Morsco Supply, LLC, a Texas Limited Liability Company, dba Express Pipe & Supply, Plaintiff, v. Los Angeles Unified School District; Does 1 through 30, inclusive, Defendants
19. Law Offices of Craig P. Alexander  
Verified Petition for Writ of Mandate; Complaint for Declaratory & Injunctive Relief; Case No. 22STCP04492; Superior Court in the State of California for the County of Los Angeles – Stanley Mosk Courthouse; California Policy Center, Inc., Petitioner and Plaintiff, v. Los Angeles Unified School District; Does 1 through 100, inclusive, Respondents and Defendants
20. PLC Law Group, APC  
Summons and Complaint for Damages: 1) Equal Protection Violation of the California Constitution; 2) Violation of the California Civil Code 51 (Unruh Act); 3) Violation of the Bane Act (California Civil Code 52 and 52.1); 4) Negligence; Case No. 22STCV25903; Superior Court in the State of California for the County of Los Angeles; S.W., A Minor, by and through her GAL, Rashunda Pitts, Plaintiff, v. Los Angeles Unified School District; Does 1 through 10, inclusive, Defendants
21. Solouki & Savoy, LLP  
Summons and Complaint for Damages and Demand for Jury Trial: 1) Negligence; 2) Negligent Supervision/Retention; 3) Sexual Battery; 4) Sexual Harassment; Case No. 22STCV40729; Superior Court in the State of California for the County of Los Angeles; Jane A.V. Doe, Plaintiff, v. Los Angeles Unified School District; Does 1 through 20, inclusive, Defendants

22. The Hettena Law Firm, LC  
Summons and Complaint for Damages (Subrogation); Case No. 22CHLC28300; Superior Court in the State of California for the County of Los Angeles; Safeco Insurance Company of America, Plaintiff, v. Los Angeles Unified School District; Does 1 through 20, inclusive, Defendants
23. Watkins & Letofsky, LLP  
Summons and Complaint for Damages: 1) Religious Discrimination – Violation of Government Code 12940(a, I) Et. Seq.; 2) Religious Discrimination – Failure to Engage in Interactive Process in Violation of Government Code 12940(1) Et. Seq.; 3) Religious Discrimination – Failure to Provide Reasonable Accommodations in Violation of Government Code 12940(1) Et. Seq.; 4) Harassment in Violation of Government Code 12940 Et. Seq.; 5) Retaliation in Violation of Government Code 12940(h, I) Et. Seq.; Demand for Jury Trial; Case No. 22STCV37796; Superior Court in the State of California for the County of Los Angeles; Roberto Emerick, Maryra Avina-Delgado, Scott Balian, Maria Cardona Mendez, Thomas Finke II, Carmen Hawa, Miurell Iraheta, Fabrice Milord, Plaintiffs, v. Los Angeles Unified School District; Does 1 through 50, inclusive, Defendants

The recommended disposition of the following item is “Refer to Superintendent for referral to the Office of the Risk Management and Insurance Services”:

| <u>No.</u> | <u>Received From</u> | <u>Type of Damage</u> | <u>Claimant</u>                | <u>Date of Damage</u> |
|------------|----------------------|-----------------------|--------------------------------|-----------------------|
| 24.        | Alex Placencio       | Damages               | Alex Placencio                 | 07-01-22              |
| 25.        | Jakelin Mercado      | Damages               | Anahi Lainez Mercado           | 09-30-22              |
| 26.        | Debra A. Postil      | Damages               | Andre Brown                    | 1977                  |
| 27.        | Elan Zektser         | Damages               | Davit Kapanjyan                | 11-08-22              |
| 28.        | Eddie Dennis         | Damages               | Emerson Mark Bradley<br>Mikasa | 08-18-22              |

|     |                          |                 |                                                             |           |
|-----|--------------------------|-----------------|-------------------------------------------------------------|-----------|
| 29. | Jeffrey L. Molchan, Esq. | Damages         | Jennifer Chavez                                             | 08-25-22  |
| 30. | Isabel Alvarez           | Damages         | Michael Anthony Delgado                                     | 06-28-22  |
| 31. | Arash H. Zabetian        | Damages         | Neah Vaughn                                                 | 08-29-22  |
| 32. | Quincy Johnson           | Damages         | Quincy Johnson                                              | 12-05-22  |
| 33. | Sholanda Coleman         | Damages         | Sholanda Coleman                                            | Feb. 2022 |
| 34. | Kelly Goldner            | Vehicle Damages | 21 <sup>st</sup> Century Insurance<br>Company ASO Eeve Sork | 05-11-22  |
| 35. | Rafi Sarukhanyan, Esq.   | Vehicle Damages | Avo Kamarzari                                               | 12-17-22  |
| 36. | Robin Saghian            | Vehicle Damages | Christina Guevara                                           | 07-25-22  |
| 37. | Fred Vazquez             | Vehicle Damages | Fred Vazquez                                                | 01-09-23  |
| 38. | Kambiz Drake             | Vehicle Damages | Hamid Kohan Darvish                                         | 11-06-22  |
| 39. | Jane Kang                | Vehicle Damages | Jane Kang                                                   | 11-10-22  |
| 40. | Luis Alonzo Martinez     | Vehicle Damages | Luis Alonzo Martinez                                        | 12-02-22  |



|     |                   |                 |                           |          |
|-----|-------------------|-----------------|---------------------------|----------|
| 41. | Makoto Nakayama   | Vehicle Damages | Makoto Nakayama           | 12-13-22 |
| 42. | Andrew Villanueva | Vehicle Damages | Mercury Insurance Company | 09-29-22 |
| 43. | Alan A. Pace      | Vehicle Damages | Michael Shane Beeson      | 12-20-22 |
| 44. | Ryan Ervin        | Vehicle Damages | Oscar Osorio              | 03-03-22 |
| 45. | Daniel Setareh    | Vehicle Damages | Pedro Cite                | 11-16-22 |
| 46. | Pedro Lemus       | Vehicle Damages | Pedro Lemus               | 12-20-22 |
| 47. | Arpi Galstian     | Vehicle Damages | Rodante Castillo Faustino | 12-09-22 |

**WILLIAMS UNIFORM COMPLAINT  
QUARTERLY REPORT SUMMARY  
2<sup>nd</sup> Quarter 2022/2023**

**DISTRICT NAME:** Los Angeles Unified School District

**DATE:** January 6, 2023

**QUARTER COVERED BY THIS REPORT:**

October, November, and December 2022

|                                          | Number of Complaints<br>Received in Quarter | Number of Complaints<br>Resolved | Number of Complaints<br>Unresolved |
|------------------------------------------|---------------------------------------------|----------------------------------|------------------------------------|
| Textbooks and<br>Instructional Materials | 1                                           | 1                                | 0                                  |
| Facility Conditions                      | 22                                          | 15                               | 7 *                                |
| Teacher Vacancy or<br>Misassignment      | 1                                           | 1                                | 0                                  |
| <b>Totals</b>                            | <b>24</b>                                   | <b>17</b>                        | <b>7</b>                           |

**Please note:** The 7 unresolved complaints are still within the 30-day deadline. Pending investigation responses; due by 1/20/2023 & 1/23/2023. Please refer to the Q2 Williams UCP Summary Report for more information.

**SUBMITTED BY:**  Julie Hall-Panameño

**TITLE:** Director, Educational Equity Compliance Office

**Williams Project**  
Record Distribution Report  
2022-2023 – 2<sup>nd</sup> Quarterly Report  
1/5/2022

| Board Member       |            |              |              |    |    |    |       |
|--------------------|------------|--------------|--------------|----|----|----|-------|
| Board Member       | Gross UCPs | Non-Wms UCPs | Net Wms UCPs | IM | MO | HR | Total |
| 1                  | 10         |              | 10           |    | 9  | 1  | 10    |
| 2                  | 5          |              | 5            | 1  | 4  |    | 5     |
| 3                  | 1          |              | 1            |    | 1  |    | 1     |
| 4                  | 5          |              | 5            |    | 5  |    | 5     |
| 5                  | 1          |              | 1            |    | 1  |    | 1     |
| 6                  | 0          |              | 0            |    | 0  |    | 0     |
| 7                  | 2          |              | 2            |    | 2  |    | 2     |
| Other/Districtwide |            |              |              |    |    |    |       |
| Not Applicable     |            |              |              |    |    |    |       |
| TOTAL              | 24         | 0            | 24           | 1  | 22 | 1  | 24    |
| Local District     |            |              |              |    |    |    |       |
| Local District     | Gross UCPs | Non-Wms UCPs | Net Wms UCPs | IM | MO | HR | Total |
| Northeast          | 0          |              | 0            |    |    |    | 0     |
| Northwest          | 1          |              | 1            |    | 1  |    | 1     |
| South              | 2          |              | 2            |    | 2  |    | 2     |
| East               | 4          |              | 4            | 1  | 3  |    | 4     |
| West               | 15         |              | 15           |    | 14 | 1  | 15    |
| Central            | 2          |              | 2            |    | 2  |    | 2     |
| Non-Public         |            |              |              |    |    |    |       |
| Not Applicable     |            |              |              |    |    |    |       |
| DACE               |            |              |              |    |    |    |       |
| TOTAL              | 24         |              | 24           | 1  | 22 | 1  | 24    |
| Subject Area       |            |              |              |    |    |    |       |
| Subject Area       | Gross UCPs | Non-Wms UCPs | Net Wms UCPs |    |    |    |       |
| IM                 | 1          |              | 1            |    |    |    |       |
| MO                 | 22         |              | 22           |    |    |    |       |
| HR                 | 1          |              | 1            |    |    |    |       |
|                    |            |              |              |    |    |    |       |
| Non-Williams       |            |              |              |    |    |    |       |
| TOTAL              | 24         | 0            | 24           |    |    |    |       |
| 2022-2023 UCPs     |            |              |              |    |    |    |       |
| Quarter            | Net UCPs   | IM           | MO           | HR |    |    |       |
| Q1                 | 92         | 0            | 92           | 0  |    |    |       |
| Q2                 | 24         | 1            | 22           | 1  |    |    |       |
| Q3                 |            |              |              |    |    |    |       |
| Q4                 |            |              |              |    |    |    |       |
| TOTAL              | 116        | 1            | 114          | 1  |    |    |       |

**Legend:** UCPs=Uniform Complaint Procedures: Wms=Williams: IM=Instructional Materials/Textbooks: MO=Facilities:  
HR=Human Resources (Teacher Assignments)

# MINUTES